

For Clerks Use Only

PIMA COUNTY SUPERIOR

COURT OF ARIZONA

IN

PIMA

COUNTY

STATE OF ARIZONA

Case Number: CR2016-004821

-vs-

Dana Marie Whitfield

Defendant (FIRST, MI, LAST)

**ORDER REGARDING PETITION TO
SEAL CRIMINAL CASE RECORDS**
(ARS § 13-911)

OR if no charges were filed:

In Re the Matter of:

Name (FIRST, MI, LAST)

Based on the information presented to the court, pursuant to ARS § 13-911, the petition requests sealing of the following records: *(Check only those that apply)*

- ☐ Arrest records of an arrest occurring on or about by the following law enforcement agency: _____.
- ☐ Charging documents created by the following prosecuting agency: _____.
- ☒ All records relating to the eligible charge(s) in court case number: CR2016-004821.

I. PETITIONER'S INFORMATION

- a. Petitioner's name: Dana Marie Whitfield
- b. Date of birth: 03/14/1988
- c. Name at the time of arrest, if not the same as above: Dana Marie Alvarez

II. THE COURT MAKES THE FOLLOWING FINDINGS OF FACT AND CONCLUSIONS OF LAW: *(Check only those that apply)*

- ☐ The Court is initially unable to act on the petition because it lacks a sufficient description of the records to be sealed. *(If this statement is selected, go directly to the Ordering section to dismiss the petition)*
- ☐ The court provided a copy of the petition and supporting documentation to the applicable prosecuting agency.
- ☐ It has been at least 60 days since the Petition to Seal Criminal Case Records was filed, **OR** it has been less than 60 days since the Petition to Seal Criminal Case Records was filed, but the court has received notice that the prosecutor and all victims who have made a request for post-conviction notice do not object to the Petition to Seal Criminal Case Records.
- ☐ The court has reviewed any report provided by the Department of Public Safety under ARS § 13-911(H).
- ☐ The offense(s) described in the petition is eligible to be sealed under ARS § 13-911.
- ☐ The petitioner is requesting sealing of records for a conviction and:
- ☐ The timeframes required by ARS § 13-911 have passed.
- ☐ The petitioner has completed all terms and conditions of sentencing, including the payment of all monetary obligations and restitution, if applicable.
- ☐ Granting the petition **is** in the best interests of the petitioner and the public's safety.
- ☐ Granting the petition **is not** in the best interests of the petitioner or the public's safety, or the petitioner is requesting sealing of records but is not entitled to have the requested records sealed because:
- ☐ The offense(s) described in the petition is not eligible to be sealed under ARS § 13-911.
- ☐ The timeframes required by ARS § 13-911 have not passed for a conviction.
- ☐ The petitioner has not completed all terms and conditions of sentencing.
- ☐ Other: _____.
- ☐ Other findings: _____.

III. THEREFORE, IT IS ORDERED:

A. ☐ **DISMISSING** the petition to seal criminal case records for the following reason(s):

☐ Failure to provide sufficient information.

☐ The petition was not filed in the correct court.

☐ Other: _____

B. ☐ **DENYING** the petition to seal criminal case records.

C. ☐ **GRANTING** the petition to seal criminal case records.

IT IS FURTHER ORDERED, in accordance with ARS § 13-911,

Sealing all records relating to the petitioner's arrest, conviction and sentence for the particular offense(s) identified above.

Directing the Clerk of the Court to seal all case records relating to the petitioner's arrest, conviction, and sentence for the particular offense(s) identified above and transmit a copy of this order to the Department of Public Safety and the prosecutor.

Judicial Officer

Date

IF THE COURT HAS DENIED YOUR PETITION, YOU MUST WAIT AT LEAST 3 YEARS AFTER THE DATE OF THE DENIAL BEFORE YOU CAN FILE A NEW PETITION.